



File No.: EXP202213632

RESOLUTION No.: R/00410/2023

Considering the complaint filed on November 8, 2022, with this Agency by Mr. A.A.A. (hereinafter, the complainant) against GHC 360 GROUP, S.L. (hereinafter, the respondent) for not having duly attended to his right of erasure.

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On October 6, 2022, the complainant sent a letter to the respondent requesting "(...) the erasure of the email address ***EMAIL.1 – of which the domain globalhealthcare.es is owned by GHC 360 GROUP –, which I understand is still active despite my disassociation from your company since September 2021. Since this is an address that has my name, I kindly ask you to deactivate it immediately and delete any emails that have been sent to and from it, as well as any attachments to those emails or that may have been downloaded via links included in such emails," and, as he states, he did not receive the legally established response.

The complainant provides various documents related to the exercise of the right.

SECOND: In accordance with Article 65.4 of the LOPDGDD, which has provided a mechanism prior to the admission of complaints filed with the AEPD, consisting of forwarding them to the Data Protection Officers designated by the data controllers or processors, for the purposes provided for in Article 37 of the aforementioned regulation, or to them when they have not been designated, the complaint was forwarded to the respondent entity for analysis and to respond to the complainant and this Agency within one month.

The representative of the respondent states that the complainant was part of their entity until November 2020, and the email address subject to the complaint was defined at that time as a recipient of purchase orders, payment notices from clients, etc.

After his departure from the entity, they attempted to modify that email address to eliminate it, "(...) but since the clients are multinational, it is a cumbersome process that takes time," providing a copy of an email received at that address in October 2022.

"From the inbox of the email address ***EMAIL.1, any communication that was not strictly corporate was immediately deleted, specifically communications received from clients such as purchase orders and payment notices.

No email was sent from that address after Mr. A.A.A.'s departure from the company, much less impersonating his identity. From the first day, an automatic response was included indicating that Mr. A.A.A. was no longer in the organization and that he would not receive that email.

In the case of the email provided, a response was sent to the sender because it referred to a purely professional matter and out of courtesy.

By the end of November, we were able to confirm that the client pending modification of the email address had already carried it out, as evidenced by the purchase order received at another email address, and the definitive deletion of the address ***EMAIL.1 was carried out."

Given that the response provided to this Agency by the data controller does not include the necessary communication that must be directed to the complainant, informing about the decision made regarding the complaint, on February 6, 2023, this request was reiterated for a response to be given to the affected party regarding the complaint filed and for a copy of it to be sent to this Agency. This letter was received by the entity on the same day, with no response recorded in this agency.

THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the complainant. Consequently, on February 8, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing and informed the parties that the maximum period to resolve the present procedure, which is understood to have been initiated by said admission agreement, will be six months.

The aforementioned agreement granted the respondent entity a hearing period, so that within ten working days it could present any allegations it deemed appropriate, with no response recorded as

having been received by this Agency.

LEGAL GROUNDS

FIRST: The Director of the Spanish Agency for Data Protection is competent to resolve this matter, in accordance with the provisions of paragraph 2 of Article 56 in relation to paragraph 1 f) of Article 57, both of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, GDPR); and in Article 47 of the LOPDGDD.

SECOND: In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors.

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regarding the obligations that pertain to them, as well as addressing the claims submitted by an interested party and investigating the reasons for such claims.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, prior to the admission for processing of the claim that gives rise to this procedure, the claim was forwarded to the responsible entity for analysis, requiring a response to this Agency within one month and proof of having provided the claimant with the appropriate response, in the event of exercising the rights regulated in Articles 15 to 22 of the GDPR.

This admission agreement determines the initiation of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“1. When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of the following article.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the claimant. After this period, the interested party may consider their claim accepted.”

The clarification of administrative responsibilities within the framework of a sanctioning procedure is not deemed appropriate, whose exceptional nature implies that, whenever possible, preference is given to alternative mechanisms that are supported by current regulations.

It is the exclusive competence of this Agency to assess whether there are administrative responsibilities that should be clarified in a sanctioning procedure and, consequently, the decision regarding its initiation, with no obligation to initiate a procedure upon any request made by a third party. Such a decision must be based on the existence of elements that justify the initiation of sanctioning activity, circumstances that do not occur in the present case, considering that with this procedure the guarantees and rights of the claimant are duly restored.

THIRD: The rights of individuals regarding the protection of personal data are regulated in Articles 15 to 22 of the GDPR and 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, being deemed that the request has been addressed (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive on more than one occasion during a period of six months, unless there is a legitimate reason for it.

On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

FOURTH: Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the erasure of personal data concerning them without undue delay, and the data controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and where there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

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e) personal data must be deleted for compliance with a legal obligation established in Union Law or the laws of the Member States applicable to the data controller;

f) personal data has been obtained in relation to the provision of information society services mentioned in Article 8, paragraph 1.

2. When the data controller has made personal data public and is obliged, under the provisions of paragraph 1, to delete such data, the data controller, taking into account the available technology and the cost of its application, shall adopt reasonable measures, including technical measures, to inform controllers that are processing the personal data of the data subject's request for deletion of any link to such personal data, or any copy or replica thereof.

3. Paragraphs 1 and 2 shall not apply when processing is necessary:

- a) to exercise the right to freedom of expression and information;
- b) for compliance with a legal obligation requiring the processing of data imposed by Union Law or the laws of the Member States applicable to the data controller, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

- c) for reasons of public interest in the area of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes, or statistical purposes, in accordance with Article 89, paragraph 1, insofar as the right referred to in paragraph 1 could make it impossible or seriously impede the achievement of the objectives of that processing, or
- e) for the formulation, exercise, or defense of claims.

FIFTH: In the case analyzed here, the complaining party, after their disassociation from the responding party, exercised their right to delete the email address that had been assigned to them.

In the allegations presented by the responding party after the transfer of the complaint made by this Agency in the pre-admission phase, it stated that, since it was an account defined as a receiver of purchase orders, payment notices from clients, etc., it was cumbersome and delayed in time.

Furthermore, it stated that “(...) At the end of November, we were able to confirm that the client pending modification of the email address had already carried it out.”

However, at no time during the processing of this file has the responding party provided any documentary evidence that would allow considering that it has expressly responded to the complaining party regarding their exercise of rights.

Consequently, it is appropriate to uphold the complaint submitted.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. and to urge GHC 360 GROUP, S.L. with NIF B01843481, to, within ten working days following the notification of this resolution, send to the complaining party a certification stating that it has addressed the requested right to deletion or that it has denied it with justification indicating the reasons why the request cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to GHC 360 GROUP, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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